

SANCTIONING PROCEDURE RESOLUTION

From the actions carried out by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 07/07/23, Mr. A.A.A. (hereinafter, the complainant) submitted a complaint to the Spanish Agency for Data Protection.

The complaint is directed against the entity CARSO TRADING, S.L., with CIF: B12940946, (hereinafter, the complained party), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons in relation to the Processing of Personal Data and the Free Movement of such Data (GDPR), Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The facts stated by the complainant are as follows:

"On 22/04/23, I received a commercial communication via email at my address, without prior request or express authorization, and without an existing contractual relationship. Although I should never have received that email, on 24/04/23 I wrote to the sender requesting that they cease their communications and to exercise my right of access to the email address indicated in their privacy policy ***EMAIL.1, they have continued sending me their SPAM and have not responded to the exercise of my rights. The addresses ***EMAIL.2 and ***EMAIL.3 have the same privacy policy, as they are part of the address ***EMAIL.4.

Along with the complaint documents, the following documentation is attached:

- Copy of the commercial email received from the address ***EMAIL.5 on 22/04/23, with the following content:

- o From: B.B.B.

- A: ***EMAIL.6

- Subject: Re: Important

- Date: Saturday, April 22, 2023 3:46:16

- Hello A.A.A., I am B.B.B. from the Press Department. How are you?

- I am contacting you because I want to explain how A.A.A. can appear in more than 50 digital newspapers as news, for a single monthly fee of 99 euros, with no commitment (...).

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- Copy of the email sent by the complainant to the address ***EMAIL.1 on 24/04/23 in which they request the right of access to their personal data, as well as their opposition to the processing of their personal data for marketing purposes:

- o From: ***EMAIL.6

- A: ***EMAIL.1

- Cc: "MailSigned"

- Subject: RE: Important

- Date: Monday, April 24, 2023 9:57:19

- Dear Sirs:

- By means of this document with qualified electronic signature, I exercise my rights of access, opposition, and limitation of processing, in accordance with the provisions of the General Data Protection Regulation, and consequently, (...)

- Opposition to the processing of my personal data for marketing purposes (...)

- Copy of the commercial email received from the address ***EMAIL.7 on 03/07/23, with the following content:

o From: B.B.B.

A: ***EMAIL.6

Subject: Re: News about A.A.A..

Date: Monday, July 3, 2023 14:43:59

Hello {{name}}, my name is B.B.B.. I would like to talk to you about how we can improve your business's online positioning and reputation by publishing real news in more than 60 high-authority digital newspapers. Could you provide me with a phone number to offer you up to two months for free?

Thank you.(...)"

SECOND: On 13/09/23, in accordance with the provisions of Article 65.4 of the LOPDGDD, this Agency forwarded the complaint to the complained party for analysis and to report, within one month, on what was stated in the complaint document.

The transfer was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), according to the certificate from the Electronic Notifications and Electronic Address Service, it was sent to the complained party on 13/09/23 via the electronic notifications service, "NOTIFIC@", being automatically rejected on 24/09/23, as stated in the acknowledgment of receipt in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, for informational purposes, a copy was sent by postal mail to the address indicated in the Registry.

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3/9

Mercantil Central as registered office: ***ADDRESS.1, was returned to sender on 04/10/23, with the message "unknown," as stated in the acknowledgment of receipt in the file. No response has been received to this transfer letter.

THIRD: On 27/07/23, the Director of the Spanish Agency for Data Protection issued an agreement to admit the processing of the complaint filed, in accordance with Article 65 of the LPDGDD.

FOURTH: On 13/11/23, this Agency conducted the following due diligence checks regarding the indications included in the advertising emails, confirming that there is no mechanism that allows for opposition to the processing of data for promotional purposes (email address or other valid electronic address where this right can be exercised).

FIFTH: On 04/12/23, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the entity, CARSO TRADING, S.L., with CIF: B12940946, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), for the alleged infringement of Article 21.1 of the LSSI, classified as "minor" in Article 38.4.d) of that regulation, regarding the sending of commercial communications after the complainant opposed it.

In the opening agreement, it was determined that the sanction that could correspond, based on the existing evidence at that time and without prejudice to what might result from the instruction, would amount to a total of 1,000 euros (one thousand euros).

It was also indicated to the accused party that if they did not submit allegations to this initiation agreement within the stipulated period, it could be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

The notification of the opening agreement was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP). According to the Certificate from the State Company Correos y Telégrafos, S.A., the initiation letter sent to the registered office, ***ADDRESS.1, according to the Mercantile Registry, was returned to sender as "unknown" on 21/12/23.

On 29/12/23, the notification of the initiation agreement was made through an announcement in the Single Edict Board of the Official State Bulletin, in accordance with Article 44 of the LPACAP. In this announcement, the accused party was informed about the possibility of obtaining a copy of the

opening agreement.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the accused party in this Agency.

Article 64.2.f) of the LPACAP - a provision of which the accused party was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement about the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the LSSI attributed to the accused party, and the sanction that could be imposed. Therefore, considering that the accused party has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts proven in this procedure,

PROVEN FACTS

First: The facts stated by the complainant in their complaint refer to having received a commercial communication from the accused party by email without having previously requested or expressly authorized it, and without there being a prior contractual relationship.

After receiving the advertising email, the complainant contacted the accused party to cease their mailings, but the accused party sent another advertising email.

To corroborate the claims made in the complaint, the following documentation is attached:

- Copy of the commercial email received from the address ***EMAIL.5 on 22/04/23, with the following content:

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- To: ***EMAIL.6

- Subject: Re: Important

- Date: Saturday, April 22, 2023 3:46:16

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- I am contacting you because I want to explain how A.A.A. can appear in more than 50 digital newspapers as news, for a single monthly fee of 99 euros without permanence (...).

- Copy of the email sent by the complainant to the address ***EMAIL.1 on 24/04/23 in which they request the right of access to their personal data, as well as their opposition to the processing of their personal data for marketing purposes:

- o From: ***EMAIL.6

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- 5/9

Dear Sirs:

By means of this document with a qualified electronic signature, I exercise my rights of access, opposition, and limitation of processing, in accordance with the provisions of the General Data Protection Regulation, and consequently, (...)

Opposition to the processing of my personal data for marketing purposes (...)

-

Copy of the commercial email received from the address ***EMAIL.7 on 03/07/23, with the following content:

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From: B.B.B.

To: ***EMAIL.6

Subject: Re: News about A.A.A..

Date: Monday, July 3, 2023 14:43:59

Hello {{name}}, my name is B.B.B.. I would like to talk to you about how we can improve your business's online positioning and reputation by publishing real news in more than 60 high-authority digital newspapers. Could you provide me with a phone number to offer you up to two months for free?

Thank you. (...)"

Second: On the website "****EMAIL.4" the respondent is listed as the owner, with the indication of their name and NIF, as well as the email address ***EMAIL.1.

Third: On the website "prensamadrid.com" the respondent is listed as the owner, with the indication of their name and NIF, as well as the email address ***EMAIL.1 (as of today, the domain has expired).

LEGAL GROUNDS

I.

Competence.

In accordance with the provisions of Article 43.1 of the LSSI and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II.

Summary of the events:

According to the complainant, on 22/04/23, they received a commercial communication by email without having previously requested or expressly authorized it, and without an existing contractual relationship.

There being no mechanism that allowed for opposition to the processing of data for promotional purposes in the received email, one day later, on 24/04/23, they contacted the sender by email to request that they cease their mailings and to exercise their right of access to any personal data they might have about them, receiving no response. Despite this, on 03/07/23, they received another advertising email.

III.

Prohibition of unsolicited or expressly authorized commercial communications

The LSSI prohibits unsolicited or expressly authorized commercial communications, based on a concept of commercial communication that is qualified as a service of the information society and is defined in its Annex as follows: "f) Commercial communication: any form of communication aimed at the promotion, directly or indirectly, of the image or of the goods or services of a company, organization, or person engaged in a commercial, industrial, artisanal, or professional activity.

The concept of commercial communication, according to the definition included in Annex f), first paragraph of the LSSI, encompasses all forms of communications intended to promote directly or indirectly goods, services, or the image of a company, organization, or person with a commercial, industrial, artisanal, or professional activity.

On the other hand, the LSSI in its Annex a) defines "Service of the Information Society" as: "any service normally provided for a fee, at a distance, by electronic means and at the individual request of the recipient. The concept of service of the information society also includes services not remunerated by their recipients, to the extent that they constitute an economic activity for the service provider."

The aforementioned section adds that the sending of commercial communications is a service of the information society, as long as it represents an economic activity.

According to section d) of the aforementioned Annex, the recipient is the “natural or legal person who uses, whether or not for professional reasons, a service of the information society.”

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7/9

From the above, it is deduced that when commercial communication does not meet the requirements of the concept of Information Society Services, it loses its character as commercial communication. In this regard, the second paragraph of Annex f) of the LSSI indicates two cases that will not be considered commercial communication for the purposes of this Law. On one hand, the data that allows direct access to the activity of a person, company, or organization, such as the domain name or email address, and, on the other hand, communications related to goods, services, or the image offered when they are prepared by a third party and without economic consideration.

In the present case, the fact that the respondent sends advertising emails to the claimant without authorization and having even requested not to receive any more advertising constitutes a violation of what is established in Article 21 of the LSSI, which states the following:

“1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those that were initially the subject of the contract with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such address is prohibited.”

IV

Qualification of the infringement and Sanction

The aforementioned infringement is classified as “minor” in Article 38.4.d) of said regulation, which qualifies as such, “The sending of commercial communications by email or other equivalent electronic communication means when the requirements established in Article 21 are not met and do not constitute a serious infringement.”

According to the provisions of Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

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8/9

Therefore, it is deemed appropriate to impose a fine of 1,000 euros (one thousand euros) for the infringement of Article 21.1 of the LSSI, classified under Article 38.4.d) of the aforementioned regulation.

Thus, in light of the above, the Director of the Spanish Agency for Data Protection,
RESOLVES:

FIRST: TO IMPOSE on the entity CARSO TRADING, S.L., with CIF: B12940946, for the violation of Article 21 of the LSSI, classified under Article 38.4.d) of the aforementioned regulation, a fine of 1,000 euros (one thousand euros).

SECOND: TO NOTIFY this resolution to CARSO TRADING, S.L.

THIRD: This resolution will be enforceable once the period for filing the optional appeal for

reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must pay the imposed fine once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period. Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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9/9

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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